



VIRGIN ISLANDS

FUMIGATION OF PLANTS ACT

Revised Edition

showing the law as at 1 January 2023

This is a revised edition of the law, prepared by the Law Revision Commissioner under the authority of the Law Revision Act 2014.

This edition contains a consolidation of the following laws—

FUMIGATION OF PLANTS ACT

Act 5 of 1967 .. in force 5 November 1907

Amended by Act: 33 of 1961

Page

3



VIRGIN ISLANDS

FUMIGATION OF PLANTS ACT

Revised Edition

showing the law as at 1 January 2023

This is a revised edition of the law, prepared by the Law Revision Commissioner under the authority of the Law Revision Act 2014.

This edition contains a consolidation of the following laws—

FUMIGATION OF PLANTS ACT

Act 5 of 1967 .. in force 5 November 1907

Amended by Act: 33 of 1961

Page

3

Published in 2023
On the authority and on behalf of the Government of The Virgin Islands
by
The Regional Law Revision Centre Inc.

For information contact—

Attorney General's Chambers
Government of the Virgin Islands
P.O. Box 242
Road Town
Tortola, VG1110
British Virgin Islands

Tel: (284) 468-2960
Email: agc@gov.vg

Printed on the authority and on behalf of the Government of The Virgin Islands
by
The Regional Law Revision Centre Inc.
P.O. Box 1626, 5 Mar Building,
The Valley, AI-2640, Anguilla

Tel: (264) 497-7572
Website: <https://lawrevision.ai>

Authorised Printers for this Revised Edition

FUMIGATION OF PLANTS ACT

ARRANGEMENT OF SECTIONS

SECTION

1. Short title
2. Interpretation
3. Ports of entry
4. All imported plants to be fumigated
5. Plants to be delivered to the Financial Secretary
6. Place of landing
7. Fumigating apparatus
8. Process of fumigation
9. Removal of plants after fumigation
10. Disposal of plants after fumigation
11. Expenses of removal
12. Penalty
13. Regulations
14. Procedure and penalty

FUMIGATION OF PLANTS ACT

(Acts 5 of 1967 and 33 of 1961)

Commencement

[5 November 1907]

Short title

1. This Act may be cited as the Fumigation of Plants Act.

Interpretation

2. In this Act—

“Agricultural Authority” means the Chief Agricultural Officer, and includes any person acting in his aid or under his direction;

“Financial Secretary” includes any Officer of Customs;

“imported” means brought into the Territory by any channel whatsoever, including the “parcels post”;

“importer” includes the owner and his agents and servants;

“packages” includes boxes, coverings, wrappers or anything whatever in which plants are imported;

“plants” includes growing plants, cuttings, butts and grafts, bulbs, roots and seeds, and also fruit and vegetables intended for propagation and not for consumption as food;

“port of entry” means the Port of Road Town and any other port or place in the Territory appointed by the Governor for the importation of plants.

Ports of entry

3. The Governor may by proclamation appoint one or more places (besides the port of Road Town) as ports of entry for the importation of plants.

All imported plants to be fumigated

4. All plants imported into the Territory, together with the packages in which they are contained shall, subject to the discretion of the Agricultural Authority, be fumigated.

Plants to be delivered to the Financial Secretary

5. All plants so imported shall be delivered up by the importer to the Financial Secretary who shall cause them to be conveyed to the place of fumigation there to be dealt with by the Agricultural Authority.

Place of landing

6. No imported plants shall be landed elsewhere than at a port of entry.

Fumigating apparatus

7. Suitable apparatus for the fumigation of plants shall be provided by the Government at such place or places as may from time to time be appointed by the Governor for use at the port of Road Town and also at any other port of entry appointed by the Governor for the importation of plants; and such apparatus shall be under the care, control and management of the Agricultural Authority.

Process of fumigation

8. The process of fumigation shall be carried out in such manner and under such conditions as the Agricultural Authority may consider adequate for the destruction of any vegetable or insect pests which may possibly be on such plants, subject to any regulations made by the Governor in that behalf.

Removal of plants after fumigation

9. All plants shall be removed by the owner from the fumigation place after disinfection immediately upon his being required to do so by the Agricultural Authority.

Disposal of plants after fumigation

10. The Agricultural Authority may require the importer to keep him informed as to the disposal of any plants after fumigation, and may visit and examine them at any time, if necessary.

Expenses of removal

11. The expenses of removal to the place of fumigation (except it be in large quantities) and of the fumigation of plants shall be at the expense of the Government, but the Government shall incur no liability in respect of any risk attending fumigation.

Penalty

12. Any plants imported contrary to the provisions of this Act shall be forfeited.

Regulations

13. The Governor shall have power to make regulations for more effectually carrying out the provisions and intentions of this Act.

Procedure and penalty

14. Any person accused of having committed any offence against the provisions of this Act may, notwithstanding any other law to the contrary, be prosecuted on complaint before a Magistrate in the manner prescribed by the Magistrate's Code of Procedure Act, and shall upon conviction be liable to pay a fine not exceeding two hundred and forty dollars or to be imprisoned with or without hard labour for any term not exceeding six months.
